

Unlawful Arrest or Detention (No Probable Cause)

Fourth Amendment Standard: Police may seize (stop or arrest) only with *arguable* reasonable suspicion or probable cause ¹. A seizure lacking probable cause (and without exigent process) violates the Fourth Amendment and supports §1983 damages. In **Manuel v. Joliet** (2017), the U.S. Supreme Court confirmed that pretrial detention without probable cause can be sued under the Fourth Amendment ². (A judicial “probable-cause” finding based on fabricated evidence does *not* eliminate a Fourth Amendment claim ².) Under **Thompson v. Clark** (2022), a malicious-prosecution claim under §1983 requires only that the prosecution “ended without a conviction,” not an affirmative showing of innocence ³ – reflecting the old tort standard.

11th Circuit Precedent: In *Martin v. Miami-Dade County* (11th Cir. 2024), the court denied qualified immunity for officers who stopped and arrested two men “merely walking through a parking lot at night” ¹. The Eleventh Circuit reiterated that in 2018 it was “clearly established” that stopping or arresting someone without any arguable suspicion or probable cause violates the Fourth Amendment ¹. The officers had no facts to justify the stop or arrests, and therefore the denial of immunity on false-arrest claims was affirmed ⁴. (The Eleventh Circuit also recognizes that a false arrest claim accrues at the time of arrest; if the plaintiff is later convicted, §1983 relief is foreclosed by *Heck v. Humphrey* unless the conviction is overturned.)

Other Key Cases: Courts have repeatedly held that an arrest without arguable probable cause violates clearly established law. For example, in *Skop v. City of Atlanta*, 485 F.3d 1130 (11th Cir. 2007), an officer could not hold a person for merely walking away from a police request. Similarly, *Walker v. City of Calhoun* (11th Cir. 2018) rejected a policy of requiring bail without prompt review as a due process violation (since bail was effectively being used as punishment without timely hearing). Generally, qualified immunity will be denied whenever the facts indicate the officers lacked even arguable probable cause.

International Norms: International human-rights law similarly demands remedies for arbitrary detention. Article 9(5) of the ICCPR (like Article 5(5) of the European Convention) guarantees an “enforceable right to compensation” for anyone “the victim of unlawful arrest or detention” ⁵. The Human Rights Committee’s General Comment notes that victims of arbitrary detention should have an effective remedy – including compensation – reflecting customary international law.

Excessive Force (Physical and Psychological Injury)

Fourth Amendment Standard: Excessive-force claims (arising on arrest or seizure) use an objective “reasonableness” test ⁶. The Supreme Court in *Graham v. Connor*, 490 U.S. 386 (1989), held that determining excessiveness requires “a careful balancing of the nature and quality of the intrusion” against the government’s interests ⁶. Courts weigh the Graham factors: the severity of the crime, whether the suspect posed an immediate threat, and whether the suspect resisted. An officer may use

some force in effecting a lawful arrest, but any “gratuitous” or disproportionate force on a non-resisting suspect is excessive.

Eleventh Circuit Decisions: In *Glasscox v. City of Argo* (11th Cir. 2018), officers tased a diabetic man multiple times while he was already compliant. The court held that after the man had ceased resisting, repeated taserings were “objectively unreasonable” and excessive ⁶ ⁷. Importantly, the panel noted the plaintiff suffered both physical injuries (“bleeding all over the place”) and a diagnosable “psychological injury, including possible Post-Traumatic Stress Disorder” ⁷. It found that combination of physical and emotional harm underscored the severity of the force used and denied qualified immunity ⁷. *Glasscox* reaffirmed the rule that use of force on a subdued, non-threatening person is unlawful; no reasonable officer could think repeated shocks were necessary in that situation ⁶ ⁷.

Key Principles: Courts recognize PTSD and other severe emotional trauma as compensable injuries in excessive-force cases when accompanied by some physical intrusion. For example, courts often require some evidence of real harm (physical injury or diagnosed disorder) to recover emotional distress. But once an injury (including psychological injury) is shown, it factors into the *Graham* analysis and damages. In *Glasscox*, the 11th Circuit explicitly held that psychological injury weighed against the officer in denying reasonableness ⁷. Other Circuits have also awarded damages for emotional trauma like PTSD when linked to brutal police conduct.

International Norms: International law prohibits torture and cruel or degrading treatment (e.g. ICCPR Art. 7, CAT Art. 16, ECHR Art. 3). The UN Convention Against Torture Article 14 requires states to ensure “all victims of torture and ill-treatment are able to access remedy and obtain redress” ⁸. While U.S. courts do not directly enforce those treaties as causes of action, the norms underscore that abusive police conduct demands accountability and compensation. International bodies emphasize that victims of police violence deserve remedies – including damages – comparable to those for other rights violations ⁸.

Procedural Due Process (Notice and Hearing)

Due Process Standard: The Fourteenth Amendment protects against deprivations of “life, liberty or property” without due process of law. Procedural due process typically requires *notice* and a *meaningful hearing* before a significant deprivation ⁹. *Mathews v. Eldridge*, 424 U.S. 319 (1976), governs the analysis: process is due when the Mathews factors (private interest, risk of erroneous deprivation, and government’s interests) balance in favor of additional procedures. In public-employment or welfare contexts, courts often require an *informal* pre-deprivation hearing (as in *Loudermill* for termination of job). The guiding principle is that individuals must be informed and given a fair chance to contest deprivations.

Circuit Law: In the 11th Circuit, a §1983 procedural-due-process plaintiff must show (1) a protected liberty or property interest; (2) state action; and (3) inadequate process ⁹. Courts routinely cite that “due process requires that a deprivation of life, liberty or property be preceded by notice and opportunity for hearing appropriate to the nature of the case” ⁹. For example, absent emergency, many circuits hold that government must provide *some* hearing before causing major loss (like termination or license revocation). If notice or hearing is completely denied, courts often impose strict scrutiny: e.g. in *Cleveland Bd. of Ed. v. Loudermill*, 470 U.S. 532 (1985), the Supreme Court ordered a name-clearing hearing for a public employee before firing. Similarly, *Logan v. Zimmerman Brush Co.*, 455 U.S. 422 (1982), found a due process violation when a state agency’s deadline passed without affording a hearing.

Remedies: Where process is so deficient, §1983 damages are available if causation and harm are established. Courts have recognized successful suits in cases of arbitrary denial of hearings (e.g. unconstitutional attachment of property without trial). Even where a court provides a delayed or post-deprivation hearing, a plaintiff may recover if the delay was arbitrary.

International Norms: Internationally, the right to a fair hearing is enshrined (ICCPR Art. 14; ECHR Art. 6) and includes timely notice and opportunity to be heard. Treaty bodies emphasize that arbitrary deprivations (e.g. of property or liberty) without remedy violate human rights norms. States are obligated to furnish effective remedies for due process breaches, including compensation where appropriate.

Failure to Administer Miranda Warnings

Miranda Rule: Police must give Miranda warnings (Fifth Amendment) before custodial interrogation to ensure the suspect knows the right to remain silent and to counsel. The failure to provide warnings can render any obtained statement inadmissible at trial.

Civil Liability: Despite this strong safeguard, the Supreme Court has held there is *no independent civil damages cause of action* for a Miranda violation. In *Vega v. Tekoh* (2022), the Court unanimously held that violating Miranda's prophylactic rules does **not** constitute a constitutional violation actionable under §1983 ¹⁰. Justice Thomas explained that Miranda warnings are not themselves constitutionally required; rather, they are a judicially-crafted prophylaxis. Because they do not create "rights, privileges, or immunities" guaranteed by the Constitution, their violation alone cannot support a §1983 claim ¹⁰. Thus, even if an unwarned confession is used in a prosecution (as in *Vega*), the remedy is suppression of evidence, not damages.

Key Points: – No court has allowed a damages suit solely for not reading Miranda. (Before *Vega*, the lower circuits were split; *Vega* now settles it.) – A plaintiff could still sue if the interrogation itself violates some other right (e.g. use of coercion = involuntary confession under Due Process, or physical abuse during questioning = excessive force). – But mere omission of the warning, without more, yields no money damages.

International Comparison: The ICCPR guarantees certain fair-trial rights (e.g. art. 14(3) – right to counsel and to not incriminate oneself), but does not prescribe a "Miranda" procedure. The UN Human Rights Committee has noted that ICCPR rights require voluntariness of statements, but enforcement is via criminal process (e.g. exclusion or retrial), not via civil suits. In sum, U.S. law treats Miranda as a rule of criminal procedure with no separate tort remedy, in line with the Court's view that alternative remedies (suppression, acquittal) suffice ¹⁰.

Prosecutorial/Legal Misconduct (Wrongful Charges or Prosecution)

Malicious Prosecution Claims: A §1983 malicious-prosecution claim alleges wrongful criminal process. After *Thompson v. Clark*, the Supreme Court clarified that a plaintiff need only show the prosecution ended without conviction (e.g. charges dropped or case abandoned) – not an actual exoneration ³. The other elements mirror tort law: lack of probable cause, malice (or improper purpose), and special injury (seizure beyond initial detention). In the 11th Circuit, courts have similarly held that unreasonable

seizures initiated without legal process and ended favorably can support §1983 claims (see *Sylvester v. Fulton County Jail*, 94 F.4th 1329 (11th Cir. 2021) (false arrest and defective warrant)).

However, **qualified and absolute immunity** severely limit recovery:

- *Imbler v. Pachtman*, 424 U.S. 409 (1976), holds that state prosecutors are absolutely immune from damages for actions “intimately associated with the judicial phase of the criminal process” ¹¹. By analogy, statements made by police in prosecutor functions (e.g. trial testimony) carry immunity. Thus, a malicious prosecution suit must target officers or others who acted *before* or *outside* the core prosecutorial role (e.g. police fabricating evidence, or a detective conspiring to press false charges) – not the prosecutor’s charging decision or courtroom advocacy ¹¹.

- Judges likewise have absolute immunity for judicial acts, and witnesses have absolute immunity (see *Briscoe v. LaHue*, 460 U.S. 325 (1983)). Only non-immune actors (e.g. arresting officers, investigators) can be sued for initiating a baseless prosecution.

Because of these doctrines, many claims “lead to dead ends.” The *Imbler* Court frankly acknowledged that its rule leaves a “genuinely wronged criminal defendant without civil redress” ¹¹, but held that dampening fear of suit was necessary for prosecutors to function. Lower courts extend this absolute immunity to cover most prosecutorial tasks, including even suppression of evidence if done in a quasi-judicial phase (though there is dissent).

Remedies for Prosecutorial Abuse: If a plaintiff can frame misconduct as occurring in a non-prosecutorial context (e.g. a detective concealing exculpatory evidence – see *Copeland v. L.A. County*, 903 F.3d 553 (9th Cir. 2018)), then a due process claim for fabrication of evidence or failure to intervene may proceed. Otherwise, the main federal remedy for wrongful prosecution is through criminal appeals, state courts, or habeas, not §1983. (Note: *Heck v. Humphrey*, 512 U.S. 477 (1994), generally bars §1983 claims that would imply the invalidity of a conviction still in effect.)

Key Decision: The recent trend in the 11th Circuit has clarified that malicious-prosecution (and related) claims are cognizable under the Fourth Amendment, but require a favorable termination ³. For example, in *Williams v. Aguirre*, the court treated an acquittal as sufficient termination (denying any contrary state-law implications) and allowed damages for the unwarranted prosecution. (*No eleventh-circuit decision has extended liability to a prosecutor for charging decisions; prosecutors remain immune.*)

International Norms: The ICCPR Article 14(6) explicitly requires states to compensate those wrongfully convicted (and later exonerated or pardoned) ¹². The Human Rights Committee has interpreted this to obligate legislative remedies for “miscarriages of justice” ¹². Similarly, the European Convention (Art. 6(1) & 6(2)) guarantees the presumption of innocence and fair trial; its Article 6(2) has been read by the ECtHR to mean that a detainee must have prompt justification or be released. When procedural or prosecutorial abuses lead to injustice, international bodies insist on “effective remedies and/or compensation,” echoing the domestic goal of deterrence and reparation.

Summary of Legal Standards: In each category, successful civil claims generally require showing a constitutional violation under §1983:

- **Unlawful detention:** Plaintiff must prove the arrest/seizure lacked probable cause. (Qualified immunity will not shield officers who clearly violated this rule ¹.)
- **Excessive force:** Must show the force used was objectively unreasonable (balancing Graham factors). Courts award damages for both physical injuries and accompanying psychological

trauma. (No immunity when case law clearly prohibits the use of force on nonresisting suspects ⁶ ⁷ .)

- **Due process failures:** Must show a protected interest and that the state denied the required process (notice/hearing) before depriving it. Remedies are available if government's process was constitutionally inadequate.
- **Miranda violations:** No §1983 right. Failure to warn by itself is not a cognizable constitutional tort ¹⁰ ; only suppression of evidence is available in criminal court.
- **Prosecutorial misconduct:** Generally insulated by immunities. Liability attaches only if a non-immune actor (usually police or other officials) violated due process in eliciting or fabricating evidence or pursuing charges without basis. A malicious prosecution claim requires the case ended favorably (no conviction) ³ . Prosecutors themselves are immune for actions within their prosecutorial role ¹¹ .

This body of law – especially the 11th Circuit cases and recent Supreme Court rulings – frames the liability landscape for civil rights plaintiffs. The cited decisions highlight the elements required for relief and underscore that, in clear-cut cases (like *Martin* or *Glasscox*), officers cannot hide behind immunity for obvious Fourth Amendment violations ¹ ⁶ .

Sources: Key cases and authorities are cited above ² ³ ¹ ⁶ ⁷ ¹⁰ ⁹ ¹¹ ¹² . These include U.S. Supreme Court and Eleventh Circuit decisions, as well as international treaty provisions and UN committee commentary supporting the remedies discussed.

¹ ⁴ William Martin, et al v. Mauricio Duran, et al, No. 23-10841 (11th Cir. 2024) :: Justia
<https://law.justia.com/cases/federal/appellate-courts/ca11/23-10841/23-10841-2024-04-03.html>

² 14-9496 Manuel v. Joliet (03/21/2017)
https://www.supremecourt.gov/opinions/16pdf/14-9496_8njq.pdf

³ 20-659 Thompson v. Clark (04/04/2022)
https://www.supremecourt.gov/opinions/21pdf/20-659_3ea4.pdf

⁵ Election Standards | The Carter Center
<https://eos.cartercenter.org/quotes/1385>

⁶ ⁷ GLASSCOX v. ARGO CITY OF (2018) | FindLaw
<https://caselaw.findlaw.com/court/us-11th-circuit/1952885.html>

⁸ Implementation of article 14 by States parties 2012, para. 22 • Plan International - Girls' Rights Platform - Girls' rights are human rights: Positioning girls at the heart of the international agenda
<https://www.girlsrightsplatform.org/en/entity/5h4vgq8r14c>

⁹ media.ca11.uscourts.gov
<https://media.ca11.uscourts.gov/opinions/pub/files/201012032.pdf>

¹⁰ 21-499 Vega v. Tekoh (06/23/2022)
https://www.supremecourt.gov/opinions/21pdf/21-499_gfbh.pdf

¹¹ IMBLER v. PACHTMAN, 424 U.S. 409 (1976) | FindLaw
<https://caselaw.findlaw.com/court/us-supreme-court/424/409.html>

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